

Umang Agrawal v. Managing Director, Purvanchal Vidyut Vitran Nigam Ltd. and Others

High Court of Judicature at Allahabad · Division Bench · 24 July 2023 · 2023:AHC:146618-DB · Writ-C No. 18965 of 2023 · **Writ dismissed as infructuous after assessment withdrawn**

HEADNOTE

A writ challenging the order dated 3 February 2023, passed after a meter-tampering inspection and a provisional assessment but without a final assessment, and seeking reconnection, was dismissed as infructuous. The licensee withdrew the final assessment and on 19 July 2023 noticed the consumer to reply within fifteen days, so the cause did not survive. The Court did not construe the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Umang Agrawal held a domestic LMV-2 connection of Purvanchal Vidyut Vitran Nigam Ltd. A spot inspection of his residence on 4 May 2021 found the meter tampered, and a provisional assessment notice followed on 6 July 2021. Without making a final assessment, respondent no. 3 passed an order on 3 February 2023. Agrawal petitioned to quash that order and to have supply reconnected, relying on this Court's decision in Rituraj and on the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

Infructuous dismissal after withdrawal of the assessment

HOLDING

Once the Executive Engineer reported that the final assessment had been withdrawn and a notice dated 19 July 2023 had called on the petitioner to reply within fifteen days, the cause of action no longer survived. The writ, which assailed the order dated 3 February 2023 and sought reconnection, is dismissed as infructuous.

¶ 4-5

PRINCIPLE TAGS

procedural-listing-no-construction The Division Bench recorded withdrawal of the final assessment and the fresh reply notice, and dismissed the writ as infructuous without construing any clause of the Supply Code. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ORDER DATED 3 FEBRUARY 2023 AND THE DISCONNECTION, MADE AFTER A PROVISIONAL ASSESSMENT AND WITHOUT A FINAL ASSESSMENT, WERE UNSUSTAINABLE UNDER THE ELECTRICITY SUPPLY CODE, 2005.

Counsel relied on Rituraj. The Court did not examine that submission once the assessment was withdrawn and the writ was treated as infructuous. ¶ 3-5

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Rituraj v. State of U.P. and 3 Others</i> Writ-C No. 35477 of 2016, decided on 14 December 2017			petitioner	Referred

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.